

COMMITTEE ON GOVERNMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1140
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 13, chapter 9, Arizona Revised Statutes, is
3 amended by adding section 13-922, to read:

4 13-922. Misdemeanor records; expungement

5 A. NOTWITHSTANDING SECTION 8-348 OR 13-905, A PERSON MAY FILE A
6 PETITION WITH THE COURT FOR AN EXPUNGEMENT OF THE PERSON'S RECORD AS
7 FOLLOWS:

8 1. THREE YEARS AFTER THE DATE OF THE PERSON'S ARREST IF THE PERSON
9 WAS ARRESTED FOR A MISDEMEANOR OFFENSE AND NO CHARGES WERE FILED.

10 2. THREE YEARS AFTER THE DATE OF THE DISMISSAL IF THE PERSON WAS
11 CHARGED WITH A MISDEMEANOR OFFENSE AND THE CHARGE WAS SUBSEQUENTLY
12 DISMISSED.

13 3. THREE YEARS AFTER THE DATE OF THE NOT GUILTY VERDICT IF THE
14 PERSON WAS CHARGED WITH A MISDEMEANOR OFFENSE AND THE CHARGE RESULTED IN A
15 NOT GUILTY VERDICT.

16 4. FIVE YEARS AFTER THE DATE OF THE FULFILLMENT OF THE CONDITIONS
17 OF THE PERSON'S PROBATION OR SENTENCE AND DISCHARGE BY THE COURT IF THE
18 PERSON WAS CONVICTED OF A MISDEMEANOR OFFENSE.

19 B. THE PETITION MUST INCLUDE THE FOLLOWING:

20 1. WHETHER THE PETITIONER:

21 (a) WAS ARRESTED FOR A MISDEMEANOR OFFENSE AND NO CHARGES WERE
22 FILED.

23 (b) WAS CHARGED WITH A MISDEMEANOR OFFENSE AND THE CHARGE WAS
24 SUBSEQUENTLY DISMISSED OR RESULTED IN A NOT GUILTY VERDICT.

25 (c) WAS CONVICTED OF A MISDEMEANOR OFFENSE AND HAS FULFILLED THE
26 CONDITIONS OF SENTENCE OR ANY TERM OF PROBATION.

1 (d) HAS ANY ADDITIONAL ARRESTS OR CONVICTIONS.
2 (e) HAS OBTAINED A PRIOR EXPUNGEMENT UNDER THIS SECTION.
3 2. ANY WRITTEN RECOMMENDATION IN SUPPORT OF EXPUNGEMENT THAT IS
4 PROVIDED BY A THIRD PARTY.
5 C. THE PERSON SHALL FILE A PETITION TO EXPUNGE ALL CASE RECORDS IN
6 ONE OF THE FOLLOWING:
7 1. THE COURT IN WHICH THE PERSON WAS CONVICTED OF AN OFFENSE.
8 2. THE COURT IN WHICH AN INDICTMENT, INFORMATION, CRIMINAL CITATION
9 OR COMPLAINT AGAINST THE PERSON WAS FILED AND THE CHARGES WERE DISMISSED,
10 THE PERSON WAS FOUND NOT GUILTY OR THE PERSON'S CONVICTION WAS VACATED,
11 EXCEPT THAT IF THE COMPLAINT WAS FILED IN A JUSTICE COURT AND A SUBSEQUENT
12 INFORMATION WAS FILED, THE PETITION MUST BE FILED IN THE SUPERIOR COURT.
13 3. THE COURT IN WHICH THE PERSON HAD AN INITIAL APPEARANCE IF
14 CHARGES WERE NOT FILED.
15 4. THE SUPERIOR COURT IN THE COUNTY WHERE A PERSON WAS ARRESTED IF
16 THE PERSON DID NOT HAVE AN INITIAL APPEARANCE AND NO CHARGES WERE FILED.
17 D. THE COURT SHALL REQUIRE THE PETITIONER TO ATTEST TO THE
18 FOLLOWING AND SHALL DENY A PETITION FOR EXPUNGEMENT IF THE COURT FINDS
19 THAT EITHER OF THE FOLLOWING APPLIES:
20 1. THE PETITIONER HAS PENDING OR UNRESOLVED MATTERS IN ANY COURT OR
21 JURISDICTION IN THIS STATE OR ANOTHER STATE.
22 2. THE PETITIONER HAS NOT PAID FULL RESTITUTION OR OTHER
23 COURT-ORDERED MONETARY OBLIGATIONS.
24 E. THE COURT MAY NOT GRANT OR DENY A PETITION TO EXPUNGE A PERSON'S
25 CASE RECORDS UNTIL SIXTY CALENDAR DAYS AFTER THE COURT RECEIVES THE
26 PETITION UNLESS THE COURT RECEIVES NOTICE THAT BOTH THE PROSECUTOR AND ALL
27 VICTIMS WHO HAVE MADE A REQUEST FOR POSTCONVICTION NOTICE DO NOT OBJECT TO
28 THE PETITION. UNLESS THE PETITIONER, PROSECUTOR OR VICTIM REQUESTS A
29 HEARING, THE COURT MAY GRANT OR DENY A PETITION TO EXPUNGE CASE RECORDS
30 WITHOUT A HEARING. THE COURT MAY DISMISS A PETITION THAT DOES NOT MEET
31 THE REQUIREMENTS PRESCRIBED IN THIS SECTION WITHOUT A HEARING. THE COURT
32 SHALL GRANT THE PETITION IF THE COURT DETERMINES THAT GRANTING THE
33 PETITION IS IN THE BEST INTERESTS OF THE PETITIONER AND THE PUBLIC'S
34 SAFETY. THE COURT SHALL PROVIDE A COPY OF THE PETITION TO EXPUNGE CASE
35 RECORDS TO THE PROSECUTOR. THE PROSECUTOR MAY RESPOND TO THE PETITION AND
36 REQUEST A HEARING. THE VICTIM HAS A RIGHT TO BE PRESENT AND HEARD AT ANY
37 PROCEEDING IN WHICH THE DEFENDANT HAS FILED A PETITION TO EXPUNGE CASE
38 RECORDS. IF THE VICTIM HAS MADE A REQUEST FOR POSTCONVICTION NOTICE, THE
39 PROSECUTOR SHALL PROVIDE THE VICTIM WITH NOTICE OF THE DEFENDANT'S
40 POSITION AND OF THE VICTIM'S RIGHTS UNDER THIS SECTION.
41 F. IF THE COURT GRANTS THE PETITION FOR EXPUNGEMENT, ALL OF THE
42 FOLLOWING APPLY:
43 1. THE COURT SHALL:
44 (a) ISSUE A SIGNED ORDER EXPUNGING THE RECORD.

1 (b) NOTIFY THE DEPARTMENT OF PUBLIC SAFETY, THE PROSECUTING AGENCY
2 AND THE ARRESTING LAW ENFORCEMENT AGENCY, IF APPLICABLE, OF THE
3 EXPUNGEMENT ORDER.

4 (c) SEAL THE PETITIONER'S RECORDS RELATING TO THE EXPUNGED ARREST,
5 CHARGE, ADJUDICATION, CONVICTION OR SENTENCE AND ALLOW THE RECORDS TO BE
6 ACCESSED ONLY BY THE PERSON WHOSE RECORD WAS EXPUNGED, THE PERSON'S
7 ATTORNEY OR THE DEPARTMENT OF PUBLIC SAFETY CENTRAL STATE REPOSITORY.

8 2. THE COURT, IN ITS ORDER SHALL:

9 (a) VACATE THE PETITIONER'S JUDGMENT OF ADJUDICATION OR CONVICTION.

10 (b) STATE THAT THE PETITIONER'S ARREST, CHARGE, ADJUDICATION,
11 CONVICTION AND SENTENCE RECORDS ARE EXPUNGED.

12 3. THE DEPARTMENT OF PUBLIC SAFETY SHALL SEAL AND SEPARATE THE
13 EXPUNGED RECORD FROM ITS RECORDS.

14 4. THE ARRESTING AND PROSECUTING AGENCIES SHALL CLEARLY IDENTIFY IN
15 EACH AGENCY'S FILES AND ELECTRONIC RECORDS THAT THE PETITIONER'S ARREST,
16 CHARGE, ADJUDICATION, CONVICTION AND SENTENCE ARE EXPUNGED AND MAY NOT
17 MAKE ANY RECORDS OF THE EXPUNGED ARREST, CHARGE, ADJUDICATION, CONVICTION
18 OR SENTENCE AVAILABLE AS A PUBLIC RECORD TO ANY PERSON EXCEPT TO THE
19 PERSON WHOSE RECORD WAS EXPUNGED, THAT PERSON'S ATTORNEY OR THE DEPARTMENT
20 OF PUBLIC SAFETY CENTRAL STATE REPOSITORY [OR FOR THE SOLE PURPOSE OF A
21 PROSECUTOR DISCLOSING EXCULPATORY EVIDENCE TO THE DEFENSE].

22 G. AN ARREST, CHARGE, ADJUDICATION, CONVICTION OR SENTENCE THAT IS
23 EXPUNGED PURSUANT TO THIS SECTION MAY NOT BE USED IN A SUBSEQUENT
24 PROSECUTION BY A PROSECUTING AGENCY OR COURT FOR ANY PURPOSE.

25 H. UNLESS OTHERWISE PROVIDED BY LAW, A PERSON WHOSE RECORD IS
26 EXPUNGED PURSUANT TO THIS SECTION MAY RESPOND TO ANY INQUIRY AS THOUGH THE
27 CONVICTION DID NOT EXIST. THIS SUBSECTION DOES NOT APPLY TO A PERSON WHO
28 IS SEEKING EMPLOYMENT AS A PEACE OFFICER [OR A CORRECTIONAL OFFICER OR IN
29 A PROSECUTORIAL OR OTHER LAW ENFORCEMENT POSITION] WITH A LAW ENFORCEMENT
30 AGENCY [, A PROSECUTORIAL AGENCY OR THE STATE DEPARTMENT OF CORRECTIONS],
31 AND THE LAW ENFORCEMENT AGENCY [, PROSECUTORIAL AGENCY OR STATE DEPARTMENT
32 OF CORRECTIONS] MAY REQUEST A COPY OF THE PERSON'S SEALED COURT
33 RECORDS. THE LAW ENFORCEMENT AGENCY [, PROSECUTORIAL AGENCY OR STATE
34 DEPARTMENT OF CORRECTIONS] SHALL KEEP THESE RECORDS CONFIDENTIAL AND SHALL
35 DESTROY THESE RECORDS AFTER THE HIRING PROCESS IS COMPLETE.

36 I. THIS SECTION DOES NOT APPLY TO ANY PERSON WHO IS CONVICTED OF:

37 1. A VIOLATION OF SECTION 13-3601, CHAPTER 14 OR 35.1 OF THIS
38 TITLE, TITLE 28, CHAPTER 4 OR A VIOLENT CRIME AS DEFINED IN SECTION
39 13-901.03.

40 2. A VIOLATION OF ANY FELONY OFFENSE OR AN OFFENSE LISTED IN
41 PARAGRAPH 1 OF THIS SUBSECTION THAT WAS CHARGED IN CONJUNCTION WITH THE
42 MISDEMEANOR OFFENSE THAT IS THE SUBJECT OF THE EXPUNGEMENT PETITION.

1 Sec. 2. Section 22-125, Arizona Revised Statutes, is amended to
2 read:

3 22-125. Justice of the peace compensation; judicial
4 productivity credits; annual report; definitions

5 A. The annual salary of each justice of the peace is determined by
6 the total judicial productivity credits of each court as reported in
7 statistics compiled by the Arizona supreme court.

8 B. Judicial productivity credits shall be determined according to
9 the following formula:

10 1. All civil filings divided by ten equals _____ judicial
11 productivity credits.

12 2. All felony counts filed divided by ten equals _____
13 judicial productivity credits.

14 3. Except for counts described in paragraph 4 of this subsection,
15 all misdemeanor counts filed divided by ten equals _____ judicial
16 productivity credits.

17 4. All counts filed that allege a violation of title 5, chapter 3,
18 article 10, title 28, chapter 4, article 3 or section 28-8282 divided by
19 five equals _____ judicial productivity credits.

20 5. All civil traffic counts filed divided by sixty equals
21 _____ judicial productivity credits.

22 6. All petitions for a protective order filed divided by five
23 equals _____ judicial productivity credits.

24 7. All civil marijuana counts filed divided by sixty equals
25 _____ judicial productivity credits.

26 8. All petitions to expunge filed pursuant to section 13-922 OR
27 36-2862 divided by sixty equals _____ judicial productivity credits.

28 C. Beginning January 1, 2018, the Arizona supreme court shall
29 annually perform the calculations required by subsection B of this section
30 for each justice court for the previous twelve-month period ending on June
31 30 to determine the total judicial productivity credits. The Arizona
32 supreme court shall report the total judicial productivity credits for
33 each justice court to the applicable board of supervisors within one
34 hundred twenty days after the end of each twelve-month period. Any
35 adjustment to the salary of a justice of the peace is effective on the
36 following January 1.

37 D. Each justice of the peace shall be paid a percentage of the
38 salary of a superior court judge based on the following schedule:

39 1. Five hundred or more judicial productivity credits equals
40 seventy percent.

41 2. Two hundred or more but less than five hundred judicial
42 productivity credits equals sixty-five percent.

43 3. One hundred fifty or more but less than two hundred judicial
44 productivity credits equals fifty-five percent.

45 4. One hundred or more but less than one hundred fifty judicial
46 productivity credits equals fifty percent.

1 5. Fifty or more but less than one hundred judicial productivity
2 credits equals forty-five percent.

3 6. Twenty-five or more but less than fifty judicial productivity
4 credits equals thirty-five percent.

5 7. Twenty-four or fewer judicial productivity credits equals
6 twenty-five percent.

7 E. If a justice court is not assigned clerical help, the board of
8 supervisors shall multiply the total judicial productivity credits by two
9 for purposes of determining the salary of the justice of the peace.

10 F. If the board of supervisors divides a justice precinct into two
11 or more precincts, the board shall set the salary of the justice of the
12 peace of each precinct equal to the highest salary of any of the justices
13 of the peace whose precinct is affected by the division. The salary of
14 each justice of the peace shall be adjusted at the end of the first full
15 calendar year after the precincts are divided.

16 G. The board of supervisors shall review and adjust the annual
17 salary for each justice of the peace within the county pursuant to
18 subsection D of this section every year beginning January 1, 2019.

19 H. The judicial productivity credits for a justice court precinct
20 shall not exceed twelve hundred credits. If the total judicial
21 productivity credits of a justice court precinct exceed twelve hundred
22 credits, the county board of supervisors shall create sufficient courts,
23 or redraw the justice court precinct boundaries according to section
24 22-101, in order to reduce the judicial productivity credits for any
25 precinct which exceeds that limit.

26 I. Except as provided in subsection F of this section, the salary
27 of a justice of the peace may not be reduced during the term in office of
28 the justice of the peace and, if a justice of the peace serves consecutive
29 terms, the salary of the justice of the peace may not be reduced before
30 the start of the consecutive term by more than one tier pursuant to
31 subsection D of this section.

32 J. A filing against a juvenile is determined in the same manner as
33 a similar filing against an adult.

34 K. For the purposes of this section:

35 1. "Civil filing" means a lawsuit, eviction action, petition for
36 provisional remedy or other civil petition, small claims case or civil
37 local ordinance.

38 2. "Civil traffic count" means a traffic violation that is not
39 filed as a misdemeanor or felony.

40 3. "Felony" includes each felony count that is filed in a
41 complaint.

42 4. "Misdemeanor" includes each misdemeanor and petty offense count
43 that is filed in a complaint or uniform traffic ticket and complaint.

44 5. "Protective order" means a petition for an order of protection,
45 an injunction against harassment or workplace harassment or a peace bond.

House Amendments to S.B. 1140

1 Sec. 3. Effective date
2 Section 13-922, Arizona Revised Statutes, as added by this act, is
3 effective from and after December 31, 2026.

4 Enroll and engross to conform
5 Amend title to conform
And, as so amended, it do pass

WALT BLACKMAN
CHAIRMAN

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